

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO H.B. 2874
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-934, Arizona Revised Statutes, is amended to
3 read:

4 16-934. Termination statement; filing; contents

5 A. A committee may terminate only when the committee treasurer
6 files a termination statement with the filing officer with whom the
7 committee's statement of organization was filed.

8 B. In the termination statement, the committee treasurer shall
9 certify under penalty of perjury that ~~all~~ EITHER of the following ~~apply~~

10 APPLIES:

11 1. THE COMMITTEE RECEIVED NO CONTRIBUTIONS.

12 2. THE COMMITTEE RECEIVED CONTRIBUTIONS AND ALL OF THE FOLLOWING

13 APPLY:

14 ~~1.~~ (a) The committee will no longer receive any contributions or
15 make any disbursements.

16 ~~2.~~ (b) The committee either:

17 ~~(a)~~ (i) Has no outstanding debts or obligations.

18 ~~(b)~~ (ii) Has outstanding debts or obligations, or both, that are
19 all more than five years old, and that the committee's creditors have
20 agreed to discharge the debts and obligations and have agreed to the
21 termination of the committee.

22 ~~3.~~ (c) Any surplus monies have been disposed of and that the
23 committee has no cash on hand.

24 ~~4.~~ (d) All contributions and expenditures have been reported,
25 including any disposal of surplus monies.

26 C. A filing officer may reject the termination statement if it
27 appears to the filing officer that the requirements in subsection B of
28 this section have not been satisfied.

29 D. After a termination statement is filed, a committee:

1 1. Is not required to file any subsequent campaign finance reports.
2 2. Shall have no further receipts or disbursements without filing a
3 new statement of organization.

4 E. A standing committee may terminate its activities in a
5 particular reporting jurisdiction, and remain active in other reporting
6 jurisdictions, by filing a statement of that intent with the filing
7 officer in each reporting jurisdiction.

8 Sec. 2. Section 16-937, Arizona Revised Statutes, is amended to
9 read:

10 16-937. Failure to file; penalties; notice; suspension

11 A. If a committee fails to timely file a complete report as
12 prescribed by articles 1, 1.1, 1.2, 1.3, 1.4, 1.5 and 1.6 of this chapter,
13 the filing officer shall send a written notice by ~~e-mail~~ EMAIL to the
14 committee within five days after the filing deadline that identifies the
15 late report, describes how fines accrue and identifies methods of payment.

16 B. A committee that fails to timely file a report shall pay the
17 filing officer a penalty of ~~ten dollars~~ \$10 for each day that the filing
18 is late during the first fifteen days after the filing deadline and
19 ~~twenty-five dollars~~ \$25 for each subsequent day that the filing is late.

20 Penalties accrue until the late report is filed[, EXCEPT THAT PENALTIES
21 SHALL NOT BE ASSESSED AND ANY ACCRUED PENALTIES ARE VOID IF THE COMMITTEE
22 AT ANY TIME CERTIFIES THAT IT RECEIVED NO CONTRIBUTIONS AND MADE NO
23 EXPENDITURES DURING THE REPORTING PERIOD TO WHICH THE UNTIMELY REPORT
24 CORRESPONDS].

25 C. If a committee fails to file a complete report within thirty
26 days after the filing deadline and after providing notice pursuant to
27 subsection A of this section, the filing officer may notify the
28 appropriate enforcement officer prescribed in this article.

29 D. For any political action committee or political party that fails
30 to file three consecutive complete reports, the filing officer shall send
31 by ~~e-mail~~ EMAIL to the committee a notice of temporary suspension and the
32 following apply:

33 1. On receipt, the committee's authority to operate in the
34 jurisdiction is temporarily suspended.

35 2. The notice shall state that failure to comply with all filing
36 and payment requirements within thirty days after the date of the notice
37 shall result in permanent suspension of the committee's authority to
38 operate in that jurisdiction.

39 E. After compliance with subsection D of this section, the filing
40 officer may permanently suspend the committee and shall notify the
41 committee by ~~e-mail~~ EMAIL and is not required to provide any further
42 notice. Permanent or temporary suspension does not eliminate a
43 committee's continuing obligation to file reports and pay any outstanding
44 and accruing penalties provided by law.

45 F. FOR A COMMITTEE THAT FILES A TERMINATION STATEMENT AS PRESCRIBED
46 BY SECTION 16-934, SUBSECTION B, PARAGRAPH 1 THAT STATES THAT THE
47 COMMITTEE RECEIVED NO CONTRIBUTIONS, THE FOLLOWING APPLY:

1 1. PENALTIES MAY NOT BE ASSESSED AGAINST AND MAY NOT ACCRUE AGAINST
2 THE COMMITTEE.

3 2. ANY PENALTIES THAT ARE ASSESSED OR THAT ACCRUE AGAINST A
4 COMMITTEE THAT SUBSEQUENTLY FILES A TERMINATION STATEMENT PURSUANT TO
5 SECTION 16-934, SUBSECTION B, PARAGRAPH 1 ARE DEEMED VOID RETROACTIVELY.

6 3. FOR ANY ENFORCEMENT ACTION INITIATED BY THE ENFORCEMENT OFFICER
7 AGAINST A COMMITTEE THAT SUBSEQUENTLY FILES A TERMINATION STATEMENT
8 PURSUANT TO SECTION 16-934, SUBSECTION B, PARAGRAPH 1, THE ENFORCEMENT
9 OFFICER IS DEEMED WITHOUT JURISDICTION AND IF THE MATTER IS BEFORE A
10 COURT, THE COURT SHALL DISMISS THE MATTER PROMPTLY.

11 [G. FOR A COMMITTEE THAT HAS ACCRUED PENALTIES FOR UNTIMELY REPORTS
12 CORRESPONDING TO REPORTING PERIODS DURING WHICH THE COMMITTEE RECEIVED NO
13 CONTRIBUTIONS AND MADE NO EXPENDITURES, THE FOLLOWING APPLY:

14 1. PENALTIES MAY NOT BE ASSESSED AGAINST AND MAY NOT ACCRUE AGAINST
15 THE COMMITTEE IN CONNECTION WITH THOSE REPORTS.

16 2. ANY PENALTIES THAT ARE ASSESSED OR THAT ACCRUE AGAINST THE
17 COMMITTEE IN CONNECTION WITH THOSE REPORTS ARE DEEMED VOID RETROACTIVELY.

18 3. FOR ANY ENFORCEMENT ACTION INITIATED BY THE ENFORCEMENT OFFICER
19 AGAINST THE COMMITTEE IN CONNECTION WITH THOSE REPORTS, THE ENFORCEMENT
20 OFFICER IS DEEMED WITHOUT JURISDICTION AND IF THE MATTER IS BEFORE A
21 COURT, THE COURT SHALL DISMISS THE MATTER PROMPTLY.]

22 <<Sec. 3. Retroactivity

23 [This act applies retroactively to from and after December 31,
24 2021.]>>

25 Enroll and engross to conform

26 Amend title to conform

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